



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 08, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20274
(EIGHTH REVISION)

EXPIRATION DATE: 2026-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Bolloré Transport & Logistics
Puteaux, France

U.S. AGENT: Shipmate
Sisters, OR

2. PURPOSE AND LIMITATION:

a. This special permit authorizes the transportation in commerce of prototype lithium ion batteries contained in equipment (spacecraft) that have not completed U.N. testing and exceed 35 kg net weight and heat pipes containing certain Division 2.1, 2.2, 2.3 liquefied and compressed gases and other hazardous materials for use in specialty cooling applications such as satellites, spacecraft and military aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in development of this special permit only considered the hazard and risks associated with transportation in commerce.

c. No party status will be granted to this special permit.

d. This special permit serves as an approval under 49 CFR 172.102(c)(1), Special Provisions 131 and 391 and as a “Competent Authority Approval” as defined under 49 CFR § 107.1.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

Tracking Number: 2022094045

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.300 and 172.400 in that marking and labeling of the packagings contained within the spacecraft is not required; § 173.185(e)(7) in that an approval is required; § 172.101 Hazardous Materials Table Column (9B) in that anhydrous ammonia is forbidden on cargo aircraft and in that lithium batteries may have a mass exceeding 35 kg per package; § 173.301(f) in that the non-DOT specification packaging is not fitted with a pressure relief device; and § 173.302a(a)(1) and § 173.304a(a)(2) in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Bolloré Transport & Logistics, dated December 15, 2024, submitted in accordance with § 107.117, and the determination it is necessary to prevent significant injury to persons or property and additional information dated January 7, 2025.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, Anhydrous	2.2/2.3*	UN1005	N/A
Articles containing toxic gas, n.o.s.	2.3	UN3539	N/A
Cartridges, Power Device	1.4S	UN0323	N/A**
Chlorodifluoromethane	2.2	UN1018	N/A
Helium, Compressed	2.2	UN1046	N/A
Igniters	1.4S	UN0454	N/A
Lithium Ion Batteries, Contained in Equipment	9	UN3481	N/A
Nitrogen, Compressed	2.2	UN1066	N/A
Xenon, Compressed	2.2	UN2036	N/A

* Division 2.3 for international transportation. Division 2.2 as an alternative when only domestic transportation is involved.

** No packing group assigned for international transportation.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The prescribed packagings are non-DOT specification packagings, including aluminum heat pipes containing anhydrous ammonia, pyrovalves, and nitrogen stored in a container in accordance with the International Civil Aviation Organization's Technical Instructions for the Safe Transportation of Dangerous Goods by Air (ICAO TI), which are installed in spacecraft or components of spacecraft and are overpacked in specially designed transport containers approved by competent authorities in country of origin. The packagings are approved by the Competent Authority of France, under Approval CAE No. 13-082, CAE No. 17-037 Rev. 2, CAE No. 19-004, CAE No. 17-006, CAE No. 20-200, CAE No. 20-201, CAE No. 20-202, CAE No. 20-204, and CAE No. 20-205, CAE No. 24-004, and the Competent Authority of Germany, under Approval No. B32F/439.47/2017 or B32/439.175/2019.

(1) Packaging must comply with the requirements in Packing Instruction 910 of the supplement to the ICAO TI.

(2) Details of the packagings, components, and transport containers are as described in the information on file with the Office of Hazardous Materials Safety (OHMS).

b. OPERATIONAL CONTROLS:

(1) Transportation of the spacecraft contained in the transport container is authorized for the one-way movement via cargo aircraft to/from Toulouse/Nice, France (NCE), or Munich Germany (MUC), to/from one of six destination sites:

- (i) Space X, Cape Canaveral, FL
- (ii) Space X, Lompoc, CA
- (iii) Space X, Brownsville, TX
- (iv) Sea Launch & Energia Logistics, Long Beach, CA
- (v) Airbus OneWeb Satellites, Merritt Island, FL
- (vi) United Launch Alliance, Cape Canaveral, FL

(2) Only prototype lithium ion batteries comprised of 3,726 cells as described in the additional information dated January 7, 2025, and on file with OHMS, may be offered for transportation under the terms of this special permit.

(3) The batteries must be equipped with an effective means of preventing dangerous reverse current flow for cells connected in parallel.

(4) Cells and batteries must be protected against short circuiting.

(5) Lithium ion cells or batteries that are leaking or liable to rapidly disassemble, dangerously react produce a flame or a dangerous evolution of heat or a dangerous emission of toxic, corrosive, or flammable gases, or vapors under normal conditions of transport may not be transported under this special permit.

(6) Only 1 battery may be contained in each satellite.

(7) All batteries contained in equipment must be offered for transportation at a state of charge not exceeding 30 percent.

(8) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that certain packagings within the satellite transport container (heat pipes) are not fitted with pressure relief devices and provide appropriate guidance in case of fire exposure.

c. MARKING: The outer transport container must be plainly and durably marked on two opposite sides in letters at least 2 inches in height on a contrasting background, "DOT-SP 20274" and "DO NOT STACK" as specified in § 172.301(c).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit will be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo only aircraft and motor vehicle used to transport packages covered by this special permit. The shipper shall furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a faint, light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AS-CT/TG